

Tentative Rulings for July 30, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2402536	ZAVALA VS GENERAL MOTORS LLC	MOTION TO TAX COSTS

Tentative Ruling: : Are filing fees e-court service fees, if so,

Grant the motion as to \$1,797.25 in deposition costs for non-appearance fees.

Plaintiff Oscar Zavala filed this Song-Beverly action regarding a 2021 GMC Sierra that contained defects to the suspension, transmission and airbag systems. The complaint, filed 9/11/24, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of express warranty; and (5) breach of implied warranty of merchantability. On 2/3/26, Plaintiff filed a notice of settlement. On 5/6/26, Plaintiff filed a memorandum of costs seeking \$6,892.33 in costs.

Defendant moves to tax \$6,012.93. It argues that \$444.27 related to filing fees are not recoverable as the motions were not reasonably necessary. It contends that \$150 in jury fees are not recoverable since there was no jury trial. It asserts that \$1,797.25 non-appearance fees for depositions should not be recoverable since Plaintiff unilaterally scheduled the deposition. It claims that \$3,723.65 related to the deposition of Bryan Jenson and other third parties are not supported by invoices and include optional services and fees. It argues that \$347.76 for deposition subpoenas on non-party dealerships are not reasonably necessary as the depositions were duplicative, and the depositions never took place.

Plaintiff contends that as the prevailing party, he is entitled to all costs under Song-Beverly. He argues that Defendant failed to meet its burden in demonstrating that the costs are unreasonable since the verified memorandum is prima facie evidence of their proprietary. Otherwise, he asserts each cost is reasonable and necessary to litigation.

In reply, Defendant argues that it pointed out specific costs that were not reasonable, and Plaintiff failed to shift the burden. It otherwise repeats the arguments from the moving papers. It argues that Civil Code section 1794(d) does not allow the recovery of unnecessary or unsubstantiated costs.

Except as otherwise expressly provided by statute, the party who prevails in any action or proceeding “is entitled as a matter of right to recover costs.” (Code Civ. Proc. § 1032(b).) Section 1033.5(a) contains a list of items specifically allowed as recoverable costs, and section 1033.5(b) contains a list of items that “are not allowable as costs, except when expressly authorized by law.” An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (*Id.* at § 1033.5(c)(4).) In particular, the item “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” (*Id.* at § 1033.5(c)(2) and (3).)

Civil Code section 1794(d), however, is broader as it permits the prevailing buyer to recover “costs and expenses” that are “reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” The Legislature intended “costs and expenses” to include items not stated in the statutory definition of costs. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.)

“A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) If the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas, supra*, 19 Cal.App.4th 774.)

Defendant challenges various filing fees but fails to specifically identify which of the 16 fees it is specifically challenging. However, on its face, several of these do not appear to be appropriate as there are no filing fees associated with them: POS Summons (\$12.15), CMC Statement (\$18.25), MTC RFP Reply (\$13.75), Notice of Withdrawal of MTC PMQ (\$13.75), MTC PMQ Reply (\$13.75), MTC RFP Reply (\$13.75), Declaration re OSC re: Sanctions (\$13.75), Notice of Court’s June 6, 2025, Order (\$13.75), Amended Notice of Court’s June 6, 2025, Order (\$13.75), and Notice of Settlement (\$13.82). To the extent that these are e-court related costs, these should have been in category 14—not category 1. To that end, the court seeks to clarify with Plaintiff what is the basis of these charges as they do not constitute filing fees. If they are e-court related costs, they would be allowed.

As for the filing fees for the discovery motions, ultimately the court granted the motions. The court cannot say that these were not reasonably necessary to litigation. As for the CMC statement, OSC declaration and Notice of Settlement, they are reasonably necessary to litigation as they relate to case management issues. To this end, the court denies the motion.

Failure to timely post jury fees waives the right to jury fees. (Code Civ. Proc. § 631.) Here, Plaintiff was preserving the right to a jury trial. The court finds these reasonably necessary.

There are several non-appearance fees: PMQ non-appearance (\$465.30), Shane Burk non-appearance (\$447.55), Tech 218 of Temecula Valley non-appearance (\$351.70), Tech 60541 of Temecula Valley non-appearance (\$446.70), and PMQ of Temecula Valley non-appearance (\$446.70). Plaintiff fails to address this in the opposition. For the third-party non-appearance fees, the court finds these fees not reasonably necessary to litigation as to this Defendant when Defendant had no control

over third parties' appearances. For Defendant's non-appearance fee, Defendant indicates that it served notice that it was unavailable for that day. Plaintiff failed to justify the non-appearance deposition fee, when it had notice that Defendant would not appear. Based on this, the court grants the motion.

Defendant speculates that there were extra surcharges in the deposition invoices. Plaintiff provides some invoices in opposition. The court sees no extraordinary charges. To this, the motion is denied.

Defendant challenges service of process on third party dealership personnel as non-necessary. The court finds that these are necessary witnesses as they relate to the repair history of the vehicle. To this, the motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVME2405571	RAMOS VS SLABAUGH	DEMURRER

Tentative Ruling: SUSTAIN Defendant's Demurrer to the Second Cause of Action for Survival Action for Pre-Death Pain and Suffering, without leave to amend.

This is an action for medical malpractice. On November 27, 2024, Plaintiff Angelica Ramos ("Angelica"), the daughter of Rodolfo S. Ramos Jr. ("Decedent") filed a Complaint against multiple defendants, including Defendants Douglas P. Slabaugh, M.D. ("Defendant"), asserting a single cause of action for wrongful death by medical malpractice. The Complaint alleged that Decedent died on December 1, 2023. (Compl. ¶ 1.)

On March 4, 2025, Angelica, along with other plaintiffs, including Robert Ramos, Rodolfo Ramos, Reylene Ramos, a minor by and through her Guardian Ad Litem, Julissa Lopez ("Plaintiffs"), the children of Decedent, filed the First Amended Complaint ("FAC") against the same defendants, asserting the same cause of action for wrongful death by medical malpractice.

On October 28, 2025, Plaintiffs filed the operative Second Amended Complaint ("SAC") against the same defendants, asserting the same cause of action for wrongful death by medical malpractice and adding a survival action for pre-death pain and suffering by Angelica.

Defendant demurs to the second cause of action for survival action for pre-death pain and suffering, arguing that it is untimely and barred by the statute of limitations under CCP § 366.1. Defendant asks the Court to sustain his demurrer without leave to amend.

In opposition, Plaintiffs argue that the second cause of action for survival action relates back to the original Complaint filed on November 27, 2024. Plaintiffs assert that the claim arises from the same general set of facts, involves the same injury, and concerns the same instrumentality as the wrongful death action. Plaintiffs further contend that the 90-day tolling provision of CCP § 364 extended the statute of limitations, and that the recent legislative amendments to CCP § 377.34 provide an extended filing period for

this claim. Plaintiffs thus ask the Court to overrule the demurrer, or alternatively, grant leave to amend.

In reply, Defendant emphasizes that a survival action does not relate back to a wrongful death cause of action alleged in the original Complaint, and therefore, cannot rely on the relation back doctrine to establish the survival action is timely. Defendant further argues that CCP §§ 364, 366.1, and 377.34, at most, can toll the statute of limitations one year from the date of decedent's death, and the SAC was not filed until nearly two years after the death.

Under CCP § 366.1, a survival action must be filed either (1) within six months of death or (2) within the limitations period applicable to the underlying cause of action. Under CCP § 340.5, a medical malpractice/wrongful death cause of action must be filed within one year from the date of the injury. It is undisputed that Decedent died on December 1, 2023. Thus, Plaintiffs' survival action was required to be filed either within six months from that date, or by December 1, 2024.

Here, Plaintiffs did not allege a survival action until the filing of the SAC on October 28, 2025, nearly a year after the expiration of the limitations period. Accordingly, the survival action is untimely.

Plaintiffs argue that their survival action claim is not time-barred because it relates back to the original Complaint filed on November 27, 2024, and is based on the same general set of facts, same injury, and same instrumentality.

"A new cause of action in an amended complaint is held to relate back to the earlier pleaded claims if the later cause of action '(1) rest[s] on the same general set of facts, (2) involve[s] the same injury, and (3) refer[s] to the same instrumentality, as the original one.'" (*Brumley v. FDCC Cal., Inc.* (2007) 156 Cal.App.4th 312, 323 [internal quotation omitted].) However, in California, it is well settled that "wrongful death and loss of consortium claims of heirs do not relate back to the decedent's personal injury claims arising from his or her fatal injury." (*Id.*) This is because "an amended pleading that adds a new plaintiff [cannot] relate back to the filing of the original complaint if the new party seeks to enforce an independent right or to impose greater liability against the defendants." (*Id.* at 324 [quoting *San Diego Gas & Electric Co. v. Sup. Ct.* (2007) 146 Cal.App.4th 1545, 1550].)

Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256 is instructive. There, the initial complaint alleged wrongful death claims in connection with the death of an adult child in nursing home care. (*Id.* at 1266.) The first amended complaint added a survivorship claim, purporting to assert the rights of the decedent. (*Id.* at 1267.) The defendant moved for summary adjudication of the survivorship claims as time barred. The court concluded that the survivorship claim did not relate back to the earlier filed wrongful death claims because "the survivor cause of action pleaded a different injury than the initial complaint." (*Id.* at 1278.) The court explained:

This survivor claim, which plaintiff pursued as the decedent's successor in interest, pleaded injury to the decedent In contrast, the earlier-filed wrongful death claim

pleaded only injury to plaintiff, acting for herself, as the decedent's heir. As a matter of law, these distinct claims are technically asserted by different plaintiffs, and they seek compensation for different injuries. [Citations.] Accordingly, the doctrine of relation back does not apply, and the entire survivor claim is barred by the statute of limitations.

(*Id.* at 1278–79.) As in *Quiroz*, it is clear that Plaintiffs' survival action does not relate back to the original Complaint asserting medical malpractice/wrongful death cause of action, as the claims contemplate distinct injuries.

Plaintiffs argue that *Quiroz* is factually and procedurally distinguishable because in that case, the plaintiff initially filed only a personal injury action, and after the plaintiff died, and after the one-year statute of limitations expired, her successors attempted to add both wrongful death and survival actions for the first time. The court described those claims as “entirely new causes of action” brought by different plaintiffs that could not relate back. (*Id.* at 1280.) Here, by contrast, Plaintiffs contend that they timely filed a wrongful death action arising from Decedent's death within one year and are merely adding a “companion” survival action arising from the same medical negligence and death.

As Defendant correctly argues, however, *Quiroz* makes clear that a survival action does not relate back to the original wrongful death claim, as they seek different damages (*i.e.*, a survival action seeks recovery for injuries to the decedent, whereas the wrongful death claim seeks compensation for injuries to the plaintiffs, growing out of the decedent's death). (*Id.*; see also *Brumley*, *supra*, 156 Cal.App.4th at 325.) Accordingly, the survival action claim is time-barred and does not relate back to the original Complaint.

Plaintiffs finally argue that (1) the 90-day tolling period under CCP § 364 extends the statute of limitations, and (2) recent legislative amendments to CCP § 377.34 provide an extended filing period. Both arguments are without merit.

First, CCP § 364 provides: “No action based upon the health care provider's professional negligence may be commenced during the 90 days following the service of the notice.” Here, Plaintiffs allegedly served a Notice of Intent to Commence Action on November 22, 2024, which tolled the one-year statute for medical malpractice by 90 days, extending the limitations period to March 2, 2025. However, the SAC adding the survival action was not filed until October 28, 2025, after expiration of the extended period. Thus, this argument fails.

Second, CCP § 377.34 provides:

In an action or proceeding by a decedent's personal representative or successor in interest on the decedent's cause of action, the damages recoverable are limited to the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived, and **do not include damages for pain, suffering, or disfigurement.**

(CCP § 377.34(a) [emphasis added].) In 2021, the Legislature added subdivision (b), stating: “Notwithstanding subdivision (a), in an action or proceeding by a decedent’s personal representative or successor in interest on the decedent’s cause of action, the damages recoverable may **include damages for pain, suffering, or disfigurement** if the action or proceeding . . . was filed on or after January 1, 2022, and before January 1, 2026.” (CCP § 377.34(b) [emphasis added].)

Plaintiffs argue that this legislative change represents a shift in California survival action law and reflects legislative intent to provide a limited window for such recovery. Plaintiffs suggest this amendment allows their survival action claim to relate back to the original Complaint.

While the amendment temporarily expanded the types of damage recoverable in survival actions, it did not extend the statute of limitations or otherwise create a new filing period for survival causes of action. It simply allowed recovery of pre-death pain and suffering in timely filed survival actions. Thus, this argument is also without merit.

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the complainant to show the court that a pleading can be amended successfully. (*Id.*)

Here, Plaintiffs seek leave to amend in the event the Court sustains any part of the demurrer. However, there are no facts that can cure the deficiencies discussed above, as the untimeliness of Plaintiffs’ survival action is determined based on the date of Decedent’s death, which is December 1, 2023. (*Okun v. Sup. Ct.* (1981) 29 Cal.3d 442, 460 [leave to amend should be denied when “there are no circumstances under which an amendment would serve any useful purpose”].) Accordingly, leave to amend is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVME2500109	GRIFFIN VS BARNETT	DEMURRER

Tentative Ruling: SUSTAINED without leave to amend since there is judicially noticeable evidence that Plaintiff was aware of property owner’s identity prior to filing the Complaint.

This is a premises liability case. On February 1, 2023, Plaintiff Tia Griffin (“Plaintiff”) was walking within the hallway of her rental unit when she stepped on unsecured, loose, raised and/or warped flooring within the unit, causing her to trip and fall. Plaintiff alleges that the unit was negligently owned, operated and maintained by Defendants Alex Barnett (“Barnett”) and Hemet Homes, LLC (“Hemet Homes”). On January 8, 2025, Plaintiff filed her Complaint against Barnett for: (1) General Negligence; and (2) Premises Liability. On January 13, 2026, Plaintiff filed an Amendment to the Complaint (“Doe Amendment”) substituting Hemet Homes for Doe 1.

Hemet Homes now demurs to the Complaint and Doe Amendment. Hemet Homes argues that Plaintiff was not genuinely ignorant as to the identity of Hemet Homes or its

relation to the subject incident based on judicially noticeable records from a prior lawsuit filed by Plaintiff against Hemet Homes.

Plaintiff argues that the court records from the prior lawsuit do not establish Plaintiff's current knowledge of Hemet Homes' identity or connection to the incident. Plaintiff argues that 1) she has been living out of state and did not have access to the documents, and 2) that the prior lawsuit was based on contractual claims under her apartment lease rather than negligence. Plaintiff argues that she filed the prior pleading in pro per and did not understand the parties' responsibilities.

In its Reply, Hemet Homes argues that Plaintiff did not produce any admissible evidence that she did not have access to her records at the time the Complaint was filed. Hemet Homes argues that the prior litigation was based on nearly identical claims and the fact that there was contract rather than torts claims is irrelevant since it is clear that Plaintiff knew that Hemet Homes was the landlord and owner of the premises.

Hemet Homes did not meet and confer prior to the initial hearing on April 9, 2026. As a result, the Court continued the hearing and ordered the parties to meet and confer. On April 16, 2026, counsel for Hemet Homes filed a Declaration indicating that he met and conferred telephonically with Plaintiff's counsel on April 16, 2026, but the parties were unable to resolve the issues informally. (Decl. of Chun, ¶ 2.) This satisfies that meet and confer requirements under section 430.41.

Hemet Homes requests judicial notice of the Complaint, including the California Residential Lease Agreement ("Lease") attached to the Complaint as an exhibit, and the First Amended Complaint in *Griffin v. Barnett*, Case No. CVSW2301165. These documents may be judicially noticed pursuant to Evidence Code §452(d), which permits judicial notice of court records. However, "although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 113.)

Pursuant to CCP §474, when the plaintiff is ignorant of the name of a defendant, he or she must state that fact in the complaint...and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly. In general, an amendment identifying a person or entity as a "Doe" defendant "relates back" to the commencement of the action for statute of limitation purposes. (CCP § 474; *Smeltzley v. Nicholso Mfg. Co.* (1977) 18 Cal.3d 932, 935). However, the Doe Amendment must satisfy procedural requirements, including that the plaintiff must allege in the original complaint that he or she is "ignorant of the name of a defendant." (CCP § 474.) A plaintiff is ignorant of the defendant's name if the plaintiff was unaware of defendant's identity or the facts giving rise to a cause of action against the defendant. (*Marasco v. Wadsworth* (1978) 21 Cal.3d 82, 88.) The relevant inquiry is what facts the plaintiff actually knew at the time the action was filed. (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 588.) Section 474 imposes no duty of inquiry and permits Doe amendments whether the plaintiff's ignorance is from "misfortune or negligence." (*Balon v. Drost* (1993) 20 Cal. App. 4th 483, 488.) However, it has been held that when a plaintiff had actual knowledge

the defendant's identity prior to filing the complaint, but has forgotten, "the plaintiff must review readily available information that discloses the defendant's identity to invoke the section 474 relation-back doctrine." (*Woo v. Superior Court* (1999) 75 Cal. App. 4th 169, 180.) Such review is not a significant burden and does not impose a duty of inquiry on plaintiffs who never knew the defendant's identity. (*Ibid.*)

The Complaint asserts that the true names of defendants sued as Does are unknown to plaintiff. (Comp, ¶ 6.) Does 1-25 are persons whose capacities are unknown to Plaintiff. (*Id.*) On January 13, 2026, Plaintiff filed the Doe Amendment naming Hemet Homes. The Doe Amendment indicates that, "[u]pon filing the complaint herein, plaintiff(s) being ignorant of the true name of a defendant and having designated said defendant in the complaint by the fictitious name of Doe 1, and having discovered the true name of the said defendant to be Hemet Homes, LLC hereby amends the complaint by inserting such true name in place and stead of such fictitious name wherever it appears in said complaint.

Hemet Homes argues that Plaintiff was not genuinely ignorant of Hemet Homes' identity as her landlord and owner/manager of the premises based on records from *Griffin v. Barnett, et al.*; Case No. CVSW2301165. The First Amended Complaint in that case lists Alex Barnett and Hemet Homes as defendants. (RJN, Ex. B.) Plaintiff, in pro per, alleged that Barnet and Hemet Homes were the owners of the premises. (*Id.*, ¶ 2.) In that case, Plaintiff alleged that the floor in her rental unit was maintained in an unsafe condition. (*Id.* at ¶ 9.) The First Amended Complaint asserted nine causes of action, including one cause of action for general negligence. It is clear from this pleading that Plaintiff was aware of Hemet Homes' identity and ownership of the premises. Counsel for Plaintiff claims that Plaintiff was living out of state at the time the Complaint in the present action was filed and did not have access to her records, including the Lease. However, there is no evidence based on personal knowledge to substantiate this claim. Based on the court records from the prior litigation between the parties, it appears that Plaintiff had knowledge of the identity of Hemet Homes and its connection to the subject premises.

4.

CASE #	CASE NAME	HEARING NAME
CVME2502919	BEARDEN VS NIJJAR	DEMURRER

Tentative Ruling: OVERRULE the demurrer.

DENY the motion to strike.

Defendant to file their answer within 30 days.

Plaintiffs Karyn Rachel Bearden, Lavennia Anette Bearden and Henry Sparks ("Plaintiffs") allege they are a family and have been tenants at 222 N Mayflower Street, Apt. 1 in Hemet ("Subject Property") since March 2019. Plaintiffs allege Defendants Michael Nijjar ("Nijjar"), Pama Management, Inc. dba IE Rental Homes and Does 1-20 ("Defendants") were "aware of, authorized, and/or ratified Plaintiffs' occupancy of the Subject Property during the term of each Defendants' ownership, management and/or control of the Subject Property."

Plaintiffs allege that the Subject Property is maintained in a substandard, uninhabitable condition. Plaintiffs assert that the Property suffers from rodent and cockroach infestations, lack of water pressure, missing smoke detectors, hazardous wiring, mold, water damage and flood severe rodent, vermin, cockroach/pest infestations, mold, lack of water, lack of electricity, leaking AC unit, no smoke detectors, no lock on back door, no light fixtures, no cover on electrical units and broken windows posing a safety hazard. Plaintiffs assert that they have informed Defendants of the defects, but they refuse to repair the premises.

On March 7, 2025, Plaintiffs filed their complaint alleging 10 causes of action: 1) Breach of Warranty of Habitability (Civ. Code, §§ 1941, 1941.1); 2) Breach of Implied Warranty of Habitability; 3) Violation of Civil Code § 1942.4; 4) Negligence; 5) Private Nuisance; 6) Intentional Infliction of Emotional Distress; 7) Breach of Contract; 8) Breach of Covenant of Quiet Enjoyment; 9) Breach of the Covenant of Good Faith and Fair Dealing; and 10) Violation of Business & Professions Code § 17200, et seq.

On June 11, 2025, Plaintiffs filed a fictitious name amendment to the complaint naming Defendant Group IV Pomona Properties LTD (“Group IV Pomona”) as Doe 3.

Defendant Nijjar now demurs to each cause of action in the complaint on the ground each fails to state facts sufficient and is uncertain. (C.C.P., §§ 430.10(e), (f).) Nijjar argues the Complaint improperly lumps him together with the other defendants, without articulating any specific conduct he undertook personally. He states the Complaint is completely silent as to any personal actions or decisions made by Nijjar regarding the conditions of the Property. Even if they had alleged alter ego, their allegations would not be sufficient to pierce the corporate veil.

Nijjar also separately moves to strike Plaintiffs allegations and prayer for punitive damages. (C.C.P., §§ 435-436, Civ. Code, § 3294.)

In opposition, Plaintiffs argue their complaint is not uncertain because Plaintiffs have alleged that Defendants, jointly contributed to the substandard conditions at issue. The Complaint alleges each cause of action against all defendants and alleges joint and successive ownership, management, and agency and they are not required to prove precise ownership or allocation of responsibility at the pleading stage. They argue personal liability for one’s own conduct does not require alter ego or veil piercing. Nijjar’s factual denials of liability in the demurrer cannot be accepted at this stage. Plaintiffs allege that each of the claims is properly alleged.

Plaintiffs also oppose the motion to strike punitive damages arguing their allegations of malice are sufficient to support the prayer.

In reply to both the demurrer and motion to strike, Nijjar re-argues the points presented in their moving papers.

Nijjar’s demurrer does not specifically challenge any of the 10 causes of action, instead he argues there are no facts specific to him as an individual. However, all facts are alleged against “Defendants.” which includes Nijjar and includes him in various

capacities, including as owner, agent and employment of other defendants, such that it is a proper defendant. (E.g., Comp., ¶ 4.) “The general allegation of agency is one of ultimate fact, sufficient against a demurrer.” (*Kiseskey v. Carpenters’ Trust for So. Cal.* (1983) 144 Cal.App.3d 222, 230.) Plaintiffs have alleged that “Defendants” and participated in the acts and omissions giving rise to liability, acted as agents and employees of one another, and exercised ownership and control over the Subject Property. (Comp. ¶¶ 4–9, 14–16.) Plaintiffs have also alleged “Defendants” jointly contributed to the substandard conditions at issue (Comp., ¶¶ 1-52, 65-68, 107-128.) The causes of action as brought against Nijjar are sufficiently alleged that he can reasonably determine the general crux of the allegations. Nijjar does not otherwise identify any cause of action that is missing allegations to state a cause of action against him. Rather, he appears to be challenging the truth of the allegations, which is improper at the demurrer stage.

To the extent Nijjar argues that alter ego is not adequately alleged, he cites to no alter ego allegations, nor does he cite to any authority requiring it. Plaintiffs have not alleged Nijjar is liable based on alter ego liability. As discussed above, they have alleged all defendants participated in the acts and omissions alleged; acted as agents of one another; authorized and ratified the conduct; owned, managed, operated, and/or controlled the Property; constituted landlords under the lease; knew of Plaintiffs’ occupancy; received notice of the defects; failed to repair; and continued collecting rent. (Compl. ¶¶ 2, 4–8, 14–17, 30, 36–41, 47–50, 69–70, 76–78, 81–82, 87, 94–100, 111–113, 117–128, 133–154, 156–190.) The allegations are taken as true and are sufficient for pleading purposes.

To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code § 3294, subd. (a).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Ct.* (1984) 157 Cal.App.3d 159, 166.)

A tenant may state a cause of action in tort against his landlord for damages resulting from a breach of the implied warranty of habitability. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 918-19; see also *Smith v. David* (1981) 120 Cal.App.3d 101, 112 n.3 [a tenant “may seek general and punitive damages for . . . breach of warranty [of habitability]”).) The court in *Stoiber* found that plaintiff stated sufficient facts to support exemplary damages when she “alleged that defendant had actual knowledge of defective

conditions in the premises including leaking sewage, deteriorated flooring, falling ceiling, leaking roof, broken windows, and other unsafe and dangerous conditions . . . [and] alleged defendants 'In maintaining said nuisance, . . . acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive and malicious.' (*Stoiber, supra*, at 920 [citation omitted].) "Inasmuch as Civil Code section 3294 requires as a prerequisite to the recovery of punitive damages that the defendant 'has been guilty of oppression, fraud, or malice,' the cases have uniformly recognized that proof of negligence, even gross negligence, or recklessness is insufficient to warrant an award of punitive damages." (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 87.)

Plaintiffs pleaded sufficient facts to support their prayer for punitive damages. They allege that Defendants had knowingly subjected them to defective conditions in the premises, including pest and rodent infestations, electrical and structural hazards, water damage, and security failures, and continued to ignore repair obligations while collecting rent and exposing tenants to dangerous conditions. (Comp. ¶¶ 19, 22–23, 24–39, 45–49, 50–58, 69–70, 86–93, 126–133, 142–154.) Plaintiffs further allege that Defendants had actual notice of these defects through tenant complaints and inspections but intentionally failed to act for years, subjecting Plaintiffs to physical illness, anxiety, humiliation, and loss of use and value in their leasehold. (Comp. ¶¶ 126–133, 149–150.) This is sufficient at the pleadings stage.

5.

CASE #	CASE NAME	HEARING NAME
CVME2502919	BEARDEN VS NIJJAR	MOTION TO STRIKE

Tentative Ruling: See above.

6.

CASE #	CASE NAME	HEARING NAME
CVME2600116	INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB VS BERRY	PETITION FOR SUPERIOR COURT CASE NUMBER FOR THE PURPOSE OF ISSUING SUBPOENAS TO WITNESS FOR DOCUMENTS

Tentative Ruling: : Case was dismissed June 3, 2026.

7.

CASE #	CASE NAME	HEARING NAME
CVME2604572	ALLY BANK VS GARRETT CONSTRUCTION LLC	NOTICE OF WRIT OF APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling: Writ of Possession is GRANTED.

8.

CASE #	CASE NAME	HEARING NAME
CVSW2204781	DE JESUS PEREZ VS LARIOS	MOTION TO QUASH SUBPOENAS TO (1) CATALYST KIDS CALLIE KIRKPATRICK, AND (2) PROJECT FATHERHOOD MEN IN RELATIONSHIPS GROUP AT FAMILIES

Tentative Ruling: DENY

Disclosure is LIMITED TO: records of service, requirements of service, and completion certificates pertaining to Plaintiff's attendance at Catalyst Kids and Project Fatherhood.

The disclosure **shall not** include any information relating to Plaintiff's minor children.

This is a motor vehicle accident litigation initiated by Plaintiff Jose De Jesus Perez. Defendant Luis Larios ("Larios") was driving a Peterbilt Trash Truck when he saw smoke coming from the rear of the trash truck. Larios began compacting the trash in the cargo area to smother the fire. When he saw flames coming from the back of the truck, Larios stopped the truck, got out, and waited for Cal-Fire. As Cal-Fire was attempting to extinguish the fire, a gas tank attached to the truck exploded, colliding with two fire department vehicles before it crashed into Plaintiff's car (the "Incident"). Plaintiff sustained severe and permanent injuries. The operative FAC asserts a sole cause of action for Negligence.

On January 26, 2024, Cross-Complainant Justin Holmquist ("Holmquist") filed a cross complaint against Plaintiff, Larios, City of Temecula (the "City"), CR&R Incorporated dba Temecula Environmental ("CR&R"), and Luxfer inc. ("Luxfer") for (1) indemnity, (2) contribution, and (3) declaratory relief.

On September 10, 2024, Insurance Company of the West ("Insurance") filed a complaint in intervention for negligence. The CII alleges that on the day of the accident, August 16, 2021, Plaintiff was acting within the course and scope of his employment for Coastline Heating and Air Conditioning, who were insured by Insurance. Insurance paid and may be obligated to pay workers' compensation benefits to Plaintiff.

Plaintiff now moves to quash the deposition subpoena for production of business records that CR&R and Larios (collectively, "Defendants") served on Catalyst Kids Callie Kirkpatrick ("Catalyst Kids") and Project Fatherhood men in Relationships Group At Families Uniting Families ("Project Fatherhood"). Catalyst Kids is the childcare facility where Plaintiff's minor children attend and where Plaintiff completed court ordered service hours. (Plaintiff Decl., ¶2.) Project Fatherhood is a social services organization where the court ordered Plaintiff to take parenting classes at in a matter separate and apart from this lawsuit. (*Id.* at ¶3.) Plaintiff argues the subpoenas (1) seek records that are not relevant to any claim or defense in this action; (2) are facially overbroad; and (3) violate Plaintiff's constitutional privacy rights. Plaintiff argues there are far less intrusive means available to Defendants.

In opposition, Defendants argue the records sought are relevant to Plaintiff's claims injuries. The records document a criminal case that took place during the same time period that the Incident occurred, when Plaintiff's alleged injuries and symptoms would have been their most acute.

In reply, Plaintiff argues Defendants' evidentiary showing is hearsay. Plaintiff generally repeats arguments in his moving papers and alternatively requests the Court to narrowly tailor any permitted discovery.

Code of Civil Procedure section 1987.1, subdivision (a), states

If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person who's personally identifying information is sought may bring the motion. (Code Civ. Proc., § 1987.1, subd. (b).)

If a party seeks to subpoena personal records (e.g., medical and insurance records) and employment records, then the party must serve on the consumer/employee a notice to consumer along with a copy of the subpoena. (Code Civ. Proc., §§ 1985.3, subds. (b) & (e); 1985.6, subds. (b) & (e).) The party-consumer/employee whose records are sought may move to quash or modify the subpoena under Code of Civil Procedure section 1987.1. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).) Five days before production, the deposition officer and witness are to be given notice of the motion. (Code Civ. Proc., §§ 1985.3, subd. (g); 1985.6, subd. (f)(1).)

Code of Civil Procedure section 1987.1 requires that a motion to quash a subpoena be "reasonably made," but does not require that the parties first resolve the issue informally. (See Code of Civ. Proc., §1987.1.) Regardless, the parties met and conferred via videoconference on June 26, 2026, but were unable to resolve the issue. (Downey Decl., ¶¶6.) The Court should address the merits.

Defendants request judicial notice of Exhibit 4 (the Complaint in SWM2104502), Exhibit 5 (Protective Order in SWM2104502), Exhibit 6 (8/5/2022 Minute order, SWM2104502), Exhibit 7 (Sentencing Memorandum, SWM2104502), Exhibit 8 (Plea Form, SWM2104502), Exhibit 9 (Criminal Document Cover Sheet and letter from Catalyst Kids), and Exhibit 10 (Criminal Document Cover Sheet and letter from Families Uniting Families).

As such, the Court **DENIES** judicial notice of Exhibits 4, 5, 7, and 8 based on relevance. Moreover, the Court should **DENIES** judicial notice of Exhibits 9 and 10 as hearsay because materials prepared by private parties that are on file with governmental agencies are not official records of which judicial notice may be taken. (*People v. Thacker* 91985) 175 Cal.3d 594, 598-599; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 608.) The Court should **GRANT** judicial notice of Exhibit 6, the Court's Minute Order on August 5, 2022, because it is the Court's own record. (Evid. Code, § 452, subd. (d).)

The Court **SUSTAINS** objections 3, 4, 6, 7, 8, and 9, and **OVERRULES** objections 1, 2, 5, 10, and 11.

In the present case, the Subpoenas seek:

Any and all non-redacted records pertaining to Jose De Jesus Perez; Date of Birth: 3/22/1988. Said records to include, but are not limited to, any and all records re service, probation records, including, but not limited to, any and all reports, histories, terms and requirements of service, terms of probation, requirements and conditions of probation, violations and consequences, correspondence, sign in sheets, completion certificates, probation revocations and all other records, pertaining to Jose De Jesus Perez; date of birth: 03/22/1988.

(Downey Decl., Exh. 1.)

Plaintiff argues these records only concern Plaintiff's participation in unrelated court-ordered programs and his compliance with the program requirements. There is no nexus between the records sought and any claim or defense in this action. Plaintiff contends Defendant seek the records in hopes of obtaining collateral information to portray Plaintiff in a negative light.

As phrased, the descriptions in the Subpoenas seeking "any and all records" is overly broad. The categories of documents to be produced must be "reasonably" particularized from the standpoint of the party on whom the demand is made. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) The Subpoenas seek broad categories of documents, such as "service, probation records...any and all reports, histories, terms and requirements of service, terms of probation, violations and consequences, correspondence, sign in sheets, completion certificates, probation revocations and all other records." While some items listed may include some documents which are relevant and reasonably calculated to lead to admissible evidence, an otherwise permissible description of categories in a deposition subpoena may become burdensome if combined with detailed "definitions" and "instructions" that expand and complicate the demand. (*Id.*) Here, there is no clear limitation to subject matter tied to issues in this action.

Moreover, Plaintiff provided valid arguments to justify the objection based on the right of privacy. The party asserting a privacy interest has the burden of establishing its extent and the seriousness of the prospective invasion. (*Williams v. Superior Court* (2017)

3 Cal.5th 531, 557.) A party asserting a right to privacy must establish: (1) “a legally protected privacy interest”; (2) “a reasonable expectation of privacy in the circumstances”; and (3) “conduct by defendant constitutes a serious invasion of privacy.” (*Hill v. Nat’l Collegiate Athletic Ass’n* (1994) 7 Cal.4th 1, 39-40; see also *Williams, supra*, 3 Cal.5th at 552.) The right of privacy in criminal history has been recognized by the courts. (See *Central Valley Ch. 7th Step Foundation, Inc. v. Younger* (1989) 214 Cal.App.3d 145, 151-152, fn. 3; *Loder v. Municipal Ct.* (1976) 17 Cal.3d 859, 872-878.)

The burden shifts to Defendants, the party seeking discovery, to show that the information (a) is directly relevant to the cause of action or defense, and essential to a fair resolution of the lawsuit; and (b) cannot be obtained through any less intrusive means. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 843-844.) Assuming the proponent meets its burden, the court then must “carefully balance” the competing interests: the right of privacy versus the interest in obtaining just results in the litigation. (*Lewis v. Superior Court* (2017) 3 Cal.5th 561, 573.) However, even when the balancing weighs in favor of disclosure, the courts must narrowly tailor the order to preserve the right of privacy to the greatest extent. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.)

Here, Defendants acknowledge possession of Plaintiff’s medical records from his primary health care and home assistance providers at Neuropraxis, but these records do not mention physical or mental injuries or conditions prior to the alleged incident. (Rozanski Decl., ¶5, Exh. 3.) Defendants explain that on August 5, 2022, when Plaintiff pled guilty in his criminal case in SWM210452¹, the court ordered Plaintiff to enroll in and complete parenting classes. (*Id.* Exhs. 6-8.) This is approximately a year after the Incident. Accordingly, Defendants argue the records sought are relevant to evaluate Plaintiff’s claims of injuries, to wit: a traumatic brain injury; injuries to his neck, back, feet, hands, and fingers; that he was unable to work following the Incident and is still on work restrictions; headaches, dizziness, vertigo, imbalance due to vestibular dysfunction, insomnia and sleep disturbance, fatigue, back sprain/strain, parasthesia and numbness in both hands, nausea, photophobia, sonophobia, paresthesia in both wrists, slowed cognition, light and noise sensitivity, blurry vision, anxiety, depression, fatigue, lack of motivation, and PTSD. Defendants explain that despite these complaints, Plaintiff was ordered to complete his parenting classes, and the records will go to the veracity of Plaintiff’s claims of physical injury, lost wages, and future earnings.

As noted, the Subpoenas are overly broad and present a risk of privacy invasion. However, Plaintiff placed his medical condition at issue. (*Vinson, supra*, 43 Cal.3d at 840 [a personal injury plaintiff partially waives the right of privacy to medical records by filing a lawsuit; *Vesco v. Superior Court* (2013) 221 Cal.App.4th 275, 279 [“It is unfair to allow a party to raise an issue involving her medical condition while depriving an opposing party of the opportunity to challenge her claim”].) However, the compelled disclosure must be precise and narrowly tailored. (*Britt, supra*, 20 Cal.3d at 856.)

¹ The Court is aware that the Judicial Staff Attorney who performed legal research on this matter previously served as a Riverside County Deputy District Attorney. As a prosecutor, she had professional interactions with the deputy district attorney who appeared on record on August 5, 2022, Carly Rustebakke, when Plaintiff pled guilty and familiar with the defense attorney who appeared on record that same day, Annie Lu. There were only professional interactions with Ms. Rustebakke and Ms. Lu during her tenure as a prosecutor. This disclosure would not and does not affect her ability to be fair and unbiased in her duties as they relate to this matter.